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सत्यमेव जयते

Registration No. ४३-८६६४
नोंदणी क्रमांक

has this day been duly registered under The Indian Partnership Act, 1932
(Act No. IX of 1932). 13-10-32 212/213/214

याद्वारे असे प्रमाणित करण्यात येत आहे की, का. १९७७, जा. ३, गु. ३

येथे मुख्यालय असलेल्या म. उल्हास बाल सिलेब्रिझ

या नावाच्या संस्थेची ०५ मार्च, २००३. या दिवशी भारतीय भागीदारी अधिनियम, १९३२ (१९३२ चा अधिनियम क्रमांक ९) अन्वये योग्य रीतीने नोंदणी करण्यात आली आहे.

Given under my hand this day of 19.....

दिनांक २५/०३/२०२३ या दिवशी माझ्या सहीने देण्यात आले.

~~Registrar/Assistant Registrar of Firms
Bombay/Pune/Nagpur/Aurangabad.~~

निबंधक/सहायक निबंधक भागीदारी संस्था
मुंबई/पुणे/नागपूर/औरंगाबाद-

(G.C.P.) Rd 0055 (1,00,000-6-94)

भारतीय गैर न्यायिक

भारत INDIA

रु. 500



FIVE HUNDRED
RUPEES

पाँच सौ रुपये

सत्यमेव जयते

Rs. 500

INDIA NON JUDICIAL

General Stamp India, Mumbai

L.S.V. No 116

MAHARASHTRA

29 DEC 2009

Proper Officer

श्री. विजय गोविंदजी ठक्कर

★परवाना धारक मुद्रांक विक्रेता★

★परवाना धारक मुद्रांक विक्रेता प. क्र. ११६★

पु. नं. ४, न्यु मोची बिल्डिंग, अंबाजी धाम मंदिराजवळ
एम. जी. रोड, मुलुंड (प.)

क्रमांक..... 8571 दिनांक.....

सर्वश्री/श्री/श्रीमती.....

यांना स.....

FOR 8571 PARTNER

25678969

परवाना धारक मुद्रांक विक्रेता

191 JAN 2010

H 377888

MRS. V. Y. CHAUDHARI

PARTNERSHIP DEED

This Deed of Partnership is made and entered into at Mumbai on 31st Day of January in the year Two Thousand Ten by and between:-

SUNDA

Contd ---2/-

D.H. Hengam

L. Hengam

with shan

1. MR. JAWAHAR HAR'RAM HEMRAJANI, Indian Inhabitant, residing at Plot 30, Flat no. 1003, Jimmy Tower, Sector No. 4, Vashi, Navi Mumbai 400703, hereinafter in this deed referred to as the "Party of the First Part";

AND

2. MR. KAMLESH ARJUN CHOUDHARY, Indian Inhabitant, residing at Plot no. 2504/B, floor 25, Avalon Building Hiranandani Garden, Near Reliance Web World Powai, Mumbai 400076, hereinafter in this deed referred to as the "Party of the Second Part";

AND

3. MRS. VINNE JAWAHAR HEMRAJANI, Indian Inhabitant, Plot 30, Flat no. 1003, Jimmy Tower, Sector No. 4, Vashi, Navi Mumbai 400703, hereinafter in this deed referred to as the "Party of the Third Part";

AND

4. MRS. SUNITA KAMLESH CHOUDHARY, Indian Inhabitant, residing at Plot no. 2504/B, floor 25, Avalon Building Hiranandani Garden, Near Reliance Web World Powai, Mumbai 400076, hereinafter in this deed referred to as the "Party of the Forth Part";

AND

5. MR. ESHAN JAWAHAR HEMRAJANI, Indian Inhabitant, residing at Plot 30, Flat no. 1003, Jimmy Tower, Sector No. 4, Vashi, Navi Mumbai 400703, hereinafter in this deed referred to as the "Party of the Fifth Part";

AND

6. MRS. DURU HARIRAM HEMRAJANI, Indian Inhabitant, residing at Plot 30, Flat no. 1003, Jimmy Tower, Sector No. 4, Vashi, Navi Mumbai 400703, hereinafter in this deed referred to as the "Party of the Sixth Part";

AND

7. MR. HARIRAM HIMATHSINGH. HEMRAJANI, Indian Inhabitant, residing at Plot 30, Flat no. 1003, Jimmy Tower, Sector No. 4, Vashi, Navi Mumbai 400703, hereinafter in this deed referred to as the "Party of the Seventh Part".

WHEREAS party hereto of the first part and second part were carrying on business in the firm name and style of M.S. GLASS WALL SYSTEMS on terms and conditions contained in partnership deed dated 31st March 2008.

AND WHEREAS the party hereto of the Third Part, Fourth Part, Fifth Part, Sixth Part and Seventh Part are admitted in the said business of GLASS WALL SYSTEMS as partners by party hereto of the first part and second part upon mutual agreement arrived between the parties hereto.

All parties hereto in this Deed are collectively referred to as "the Partners" and individually as "the partner" which expression shall unless repugnant to the context or meaning thereof, be deemed to mean and include his/her/their legal heirs, executors, nominees, administrators and/or assignees, respectively.

AND WHEREAS the above parties intend to carry on the business of Structural Glazing & Cladding of glass work etc. and related Engineering, Services, Consulting activity or any other activity of similar nature or any other business as the Partners mutually agreed hereinafter upon at A-708, Gateway Plaza, Hiranandani complex, Powai, Mumbai in the name and style of M/S. GLASS WALL SYSTEMS

AND WHEREAS the parties hereto hereby mutually agreed on the terms and conditions of partnership as hereafter appearing.

- 1) NAME :- The name and style of the firm of partnership shall be " M/S. GLASS WALL SYSTEMS"
- 2) COMMENCEMENT :- The business of partnership has commenced and shall be deemed to have commenced business from 1st Day of January Two Thousand Ten.
- 3) OBJECTS :- The partnership business shall be of structural glazing & cladding etc. and any other activity of similar nature or any other business as the partners may hereinafter mutually agree upon.
- 4) PLACE :- The partnership business shall be carried at its registered office at A-708, Gateway Plaza, Hiranandani Complex, Powai, Mumbai or at such place or places which the partners may mutually agree upon from time to time.
- 5) DURATION :- The duration of the partnership shall be "AT WILL" but in case, any partner desires to retire from partnership He/She, shall be at liberty to do so by giving one month's notice in writing to the other partner.

- 6) SHARE IN PROFIT AND LOSSES:- The net profit or loss of the partnership business shall be shared or borne amongst the partners in the following proportion.

7)

NAME OF THE PARTNERS	SHARE OF PROFIT & LOSS
1. MR. JAWAHAR HARIRAM HEMRAJANI	40%
2. MR. KAMLESH ARJUN CHOUDHARY	40%
3. MRS. VINNE JAWAHAR HEMRAJANI	4%
4. MRS. SUNITA KAMLESH CHOUDHARI	10%
5. MR. ESHAN JAWAHAR HEMRAJANI	2%
6. MRS. DURU HARIRAM HEMRAJANI	2%
7. MR. HARIRAM H. HEMRAJANI	2%
TOTAL	100.00 %

However for the first year ending on 31st March 2010 the party hereto of the third, forth, fifth, sixth and seventh part have become partner with effect from 1st January 2010 he made profit/loss of the firm will be distributed proportionately considering their duration in the first accounting year.

- 8) CAPITAL :- The fixed capital of the partnership firm shall be Rs. 50,000/- and contributed by the partners in their profit sharing ratio. In addition to said fix capital any other capital will be contributed by the partner. The additional capital will be credited partners current capital account.

- 9) INTEREST :- The firm shall pay simple Interest @ 12% per annum or at such other rate as may be mutually agreed upon and same shall not exceed as prescribed u/s 40 (b) of the Income Tax Act, 1961 on the amount standing to the credit of capital or loan account of the partners and the profit or losses of the business of the firm shall be arrived at after accounting for the interest so payable as a business Expenditure of the firm.

Every year the interest shall be paid to the partners on the last day of the accounting year. If there is any debit balance in the account of any partner, interest at the same rate shall be payable by him.

It is also agreed that only in the accounting years in which there are profits after providing for interest on the capital of the partners as aforesaid, the following partners who are "working partners" shall be entitled to salaries/remuneration calculated as hereinafter specified.

i) **Working Partners :**

a) **SHRI HEMRAJANI JAWAHAR HARIRAM**

b) **SHRI CHOUDHARI KAMLESH ARJUN**

ii) Total salaries/remuneration payable to the above said partners shall be worked out as under subject to a maximum of Rs.10,00,000 (Rupees Ten Lakhs only)

iiia) 90% of 1st Rs.1,50,000 of Profits as per Profit & Loss Account or Income & Expenditure Account after providing for interest on partners' capital.

iiib) 60% of the next Rs.1,50,000 of profits as per Profit & Loss Account or Income & Expenditure Account after providing for interest on partners' capital.

iiic) 40% of the Balance of Profits as per Profit & Loss Account or Income & Expenditure Account after providing for interest on partners' capital.

iiid) Of the total amount of salaries/remuneration so determined, shall be payable to working partners as under:-

a) SHRI HEMRAJANI JAWAHAR HARIRAM	50 %
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b) SHRI CHOUDHARI KAMLESH ARJUN	50 %
--	-------------

	100 %
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iii) It is agreed that the salaries/remunerations shall be payable to concerned partner as above only if there are profits as per Profit & Loss Account after providing for interest on partners' capital.

It is also agreed that the salaries, if any, so payable shall be credited to the partners' capital account at the end of the accounting year.

provided that for the purpose of the

calculated on the basis of book profit as shown by the books and computed as provided in section 28 to section 44D (chapter IV) of the Income Tax Act 1961, without deducting the remuneration paid or payable to the partner's for relevant accounting year.

10. BORROWINGS :- The partnership firm may time to time borrow or lend from/to persons, firms, companies or banks such monies, as may be required for the purpose of the business as deposit or loan, at an agreed rate of interest but not for the purpose which is outside or beyond the scope of the partnership or is otherwise not directly connected with the partnership business.
11. BANK ACCOUNT :- The bankers of the partnership firm shall be such bank /banks as the partners may from time to time unanimously agree upon. Further, all partnership monies not required for current expenses and securities for money shall as and when received be paid and deposited into the bank account in the credit of the partnership account. All cheques on such bank account shall be drawn and such bank account shall be operated in the firm name by and either of the party hereto of the first part or second part or otherwise under the joint signatures of the parties as may be agreed upon between the parties hereto.
12. ACCOUNTING YEAR :- The accounts of the partnership firm shall be taken annually on 31st March every year or at such times as all the partners may from time to time determine.
13. ACCOUNTS :- The books of accounts of the partnership firm shall be kept in the safe custody of the partners at the Admin Office at 718/719 Nirmal Lifestyle, Corporate Centre, L.B.S. Marg, Mulund, Mumbai 400080, and each party shall have free access over it.
14. FINAL ACCOUNTS :- At the end of the accounting year as aforesaid an account will be taken of all the assets and liabilities and of the profits or losses of the partnership for the year and shall be signed by each partner. Such account can be reopened only if any error is discovered in which such error can be corrected. For the purpose of determination of profit/Loss to the partner, the profit/loss for the part of the accounting year period shall be deemed to have occurred from month to month basis.
15. ADMISSION OF NEW PARTNER :- The partners hereto may admit any new partner or partners upon such terms and conditions as may be agreed upon.

- a) The death, insolvency, retirement or lunacy of any of the partners shall not dissolve the partnership or in any other way affect the continuity of the firm or its business.
- b) In the event of death, insolvency or lunacy of a partner, the legal heir/s of the deceased /insolvent/lunatic partner shall be entitled to be inducted as partner in place and stead of him on the same terms and conditions as that of a partner who has died/declared insolvent/lunatic, as the case may be.
- c) The partnership firm shall upon dissolution be wound up and liabilities shall be dealt with in accordance with the provisions of the Indian Partnership Act, 1932.

17. GOODWILL

In the event of retirement of any partner or in the event of death of the partner or the partner being declared as insolvent/lunatic and none of the legal heirs/s desiring to be inducted as partner, no value shall be placed on the goodwill of the business as partnership asset, and such retiring partner/partner declared as insolvent/lunatic or legal heirs of the deceased partner shall only be entitled to the capital contributed by his/her in his/her current account as increased or decreased by drawings, profits or losses respectively up to the date of death/retirement/lunacy/insolvency..

18. ARBITRATION

If during the continuance of the partnership or any time afterwards any difference shall arise between the said partners or any one of them and the legal representative/s of any of the partners in regard to the construction of any of the articles herein contained or any division, act or thing relating to the said partnership or the affairs thereof, such differences shall forthwith be referred to one or more arbitrators as may be appointed by the partners as may be mutually agreed upon by them and every such references shall be deemed to be an arbitration in accordance with and subject to the provisions of the Arbitration and Conciliation Act, 1996 or any other statutory modifications or re-enactment thereof for the time being in force. Such Arbitration shall be subject to the exclusive jurisdiction of the Courts of Mumbai only.

19. ALTERATION OR ADDITION OF ANY CLAUSE OF THIS PARTNERSHIP

DEED :- NOTWITHSTANDING anything stated or provided herein the parties shall have full power and discretion to modify, alter or vary the terms and conditions of this partnership deed by executing the supplementary deed and such deed when executed shall have effect unless otherwise provided from the first day of accounting

year in which such supplementary deed is executed and the same shall form the part of this deed of partnership.

20. No partner shall without the previous written consent of the others :

- (a) Engage directly or indirectly in any business competing with that of the partnership;
- (b) Engage or except for the gross misconduct dismiss, any employee of the partnership;
- (c) Lend any of the moneys or deliver upon credit any goods of the firm to any person or persons whom any other partner shall have previously in writing, forbidden him to trust;
- (d) Employ any of the moneys, goods or effects of the employ any of the moneys, goods or effects of the partnership or pledge the credit thereof except in the ordinary course of business and upon the account or for the benefit of the partnership;
- (e) Give any security or promise for payment of money on account of the firm except in the ordinary course of the business;
- (f) Draw, accept or endorse any bill of exchange, hundi, promissory note or other negotiable instrument on account of the firm;
- (g) Compromise or compound or release or discharge any debt due to the partnership;
- (h) Enter into any bond or become bail or surety for any person or knowingly cause or suffer to be done anything whereby the partnership property may be endangered;

Each partner shall -

- (a) Diligently attend to the business of the partnership and faithfully engage himself therein;
- (b) Punctually pay his separate debts and indemnify the other partners and the firm against the same and all expenses thereof;
- (c) Forthwith pay all monies, cheques and negotiable instruments received by him on account of the firm into the firm's bank account;
- (d) Each partner shall be just and faithful to the other partners in all transactions relating to the partnership and at all times give to the other partners full information and truthful explanations and accounts on all matters relating to the affairs of the partnership and afford every assistance in his power in carrying on the business of the partnership for their mutual

IN WITNESS WHEREOF The parties here to have set and subscribed their hands the day and year herein above written.

SIGNED, SEALED AND DELIVERED
by the within named MR. JAWAHAR HEMRAJANI
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MR. KAMLESH CHOUDHARY
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MRS. VINNE JAWAHAR HEMRAJANI
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MRS. SUNITA KAMLESH CHOUDHARY)
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MR. ESHAN JAWAHAR HEMRAJANI
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MRS. DURU HARIRAM HEMRAJANI
in the presence of

SIGNED, SEALED AND DELIVERED
by the within named MR. HARIRAM H. HEMRAJANI
in the presence of

) Jawahar Hemrajani

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) Kamlesh Choudhary

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) Vinne Hemrajani

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) SUNITA

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) Eshan Hemrajani

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) D. H. Hemrajani

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) L. L. Hemrajani